

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
STATE OF COLORADO

Case No. 2016-2997

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF AMY
OGILVIE, LICENSE NO. LPC 1853,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Amy Ogilvie ("Respondent"), as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on January 30, 1998, having been issued license number LPC 1853, and is currently so licensed.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2016-2997 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2016-2997. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent practiced professional counseling with an expired license from September 1, 2015, through approximately May 24, 2016.
 - b. Respondent provided clinical supervision to students during the time her license was expired.
5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §12-43-222(1)(b) and (n), C.R.S., and Board Rule 7.
6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 5 and 6, the Board hereby admonishes Respondent for violation of §12-43-222(1)(b) and (n), C.R.S., and Board Rule 7. This Order is effective as a Letter of Admonition, set forth by §12-43-224(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

FINE

8. Respondent shall pay a fine of two hundred dollars (\$200.00) as authorized by Section 12-43-223(1)(b), C.R.S. Respondent understands and acknowledges that, pursuant to Section 24-34-108, C.R.S., the Executive Director of the Department of Regulatory Agencies shall impose an additional surcharge of fifteen percent (15%) of this fine. Thus, Respondent shall pay a total amount of two hundred thirty dollars (\$230.00). The total amount shall be due and payable to the State of Colorado at the time Respondent signs this Order, and shall be submitted together with this signed Order.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

14. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. Respondent shall obey all state and federal laws while this Order is in effect.

18. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

19. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

20. This Order shall be admissible as evidence at any hearing held before the Board.

21. This Order shall be a public record in the custody of the Board.

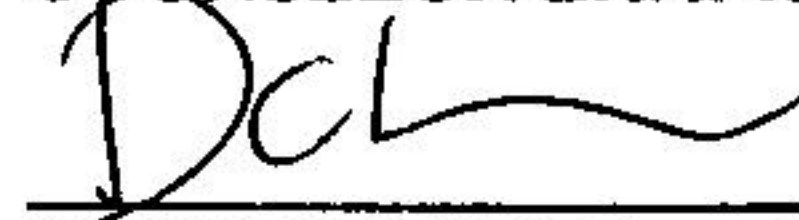
AGREED TO AND ACCEPTED BY:

RESPONDENT


AMY OGILVIE
LPC 1853

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


~~CORY EVERETT~~ Darle Magnusson
Interim Program Director

Effective this 3rd day of

January, 2017.